

Smt. Indira Singh v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 19 April 2023 · Writ-C No. 13146 of 2023 · **Objection under clause 6.5 to be decided; demand kept in abeyance.**

HEADNOTE

Writ against a demand notice for electricity dues disposed of on the department's statement that the objection would be considered under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Respondent no. 2 was directed to decide the objection dated 10.10.2022, or a fresh objection filed within two weeks, by a speaking order within four weeks, the demand remaining in abeyance until then.

FACTUAL SUMMARY

Smt. Indira Singh approached the Allahabad High Court against a demand notice dated 22 September 2022 by which respondent no. 2 sought recovery of electricity dues from her. She had filed an objection on 10 October 2022 and asked for a mandamus that it be decided. Counsel for the electricity department stated that the objection would be considered under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Pending objection to an electricity demand

HOLDING

On the electricity department's statement that the objection would be considered under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the writ is disposed of by directing respondent no. 2 to decide the objection dated 10.10.2022, or any fresh objection filed within two weeks, by a speaking order within four weeks. The demand notice dated 22.09.2022 remains in abeyance until the objections are decided. ¶ 1

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided

The objection dated 10.10.2022 to the demand notice was left to be decided under Clause 6.5 by a speaking order within four weeks, and the demand was kept in abeyance until that decision. ¶ 1

clause-6.5-alternate-remedy

The Court did not adjudicate the electricity dues. It disposed of the writ on the department's acceptance that Clause 6.5 was the route for considering the objection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY DUES IN THE DEMAND NOTICE DATED 22.09.2022 ARE PAYABLE

The demand was kept in abeyance and the objection was left to a speaking order under Clause 6.5. ¶ 1